LONOSPHERE INVESTMENTS (PRIVATE) LIMITED
versus
MESSENGER OF COURT, BINDURA
and
RUZVIDZO GONYE
and
BRIAN DAHWA
and
PHIBION SAVANHU
and
R. M. KAMBEWU
and
P. MURAPE

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 12 March & 16 April 2026

Urgent Chamber Application

T T G Musarurwa, for the applicant
A Langeveldt, for the 1st respondent
No appearance for the 2nd to 6th respondents

DEMBURE J:

The applicant sought the confirmation of the Provisional Order granted on 26 November 2025 before MANDAZA J. The confirmation proceedings were opposed by the first respondent. On 12 March 2026, the court, after hearing argument for both the applicant and the first respondent, handed down an *ex tempore* judgment, the operative part of which read as follows:

> "1. The purported sale in execution conducted by the First Respondent on 24 October 2025, concerning the Applicant's assets (listed in the First Respondent's report Annexure 'G1'), be and is hereby declared null and void and set aside.
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> 2. The judgment debt under Magistrates Court Case No. HRE C-CD660/25 be and is hereby declared to have been extinguished in full by the payment made by the Applicant to the Second Respondent on 23 October 2025.
>
> 3. The First Respondent be and is hereby ordered to forthwith release the said assets from attachment and restore them to the Applicant's undisturbed possession.

4. The First Respondent shall pay the costs of this application on an attorney-client scale."

The first respondent's legal practitioners requested written reasons for the court's decision. These are they.

FACTUAL BACKGROUND

The applicant is engaged in chrome mining in Mutorashanga through a special grant registered in the name of its associate company, Malkaline (Private) Limited.

On 3 April 2025, the second respondent obtained a default judgment against the applicant in the Magistrates' Court under Case No. HRE C-CD660/25 for payment of the sum of US$12,240.00 or its equivalent in ZIG at the prevailing interbank rate on the date of payment (*"the judgment debt"*) and costs of suit. The said sum was the outstanding balance due for chrome concentrate supplied by the second respondent to the applicant. After that default judgment, the applicant sought rescission of the judgment. However, the parties subsequently concluded a deed of settlement in terms of which the applicant undertook to discharge the debt, including costs. The applicant defaulted in effecting payments as agreed.

The second respondent, as the judgment creditor and acting through his legal practitioners, Diza and Attorneys, duly instructed the first respondent to execute the default judgment through a warrant of execution against the applicant's movable property to recover the judgment debt and costs. The first respondent proceeded to attach the applicant's mining equipment, which included, *inter alia*, a Lugong Front Loader, a heavy-duty generator, a 30-tonne JCB excavator, and a chrome processing plant, on 25 April 2025.

The first respondent scheduled a sale in execution for the said movables on Friday, 24 October 2025. While the public notice of the said public auction stated that it was to be conducted on 17 October 2025 at 9:00 hours, as per p 44 of the record, there was no dispute that the auction was carried out on 24 October 2025. The sale in execution was to be conducted in *situ* at the applicant's premises.

There was no dispute that before the sale in execution was conducted the second respondent's legal practitioner, Steadfast Mazorodze, who deposed to an affidavit at p 56, confirmed that she contacted the first respondent over the phone advising him that the applicant had paid the judgment debt and that he had to halt the sale and that the written communication

thereto would follow on 27 October 2025. There was no dispute that the sale proceeded nonetheless. As per the account at p 22 from the first respondent, all the applicant's various attached assets were sold to the second to sixth respondents individually at a total value of US$13,017.00.

On 27 October 2025, the second respondent's legal practitioners issued the letter to the first respondent confirming that the applicant had fully discharged the judgment debt. The letter further instructed him to cancel the auction and release the defendant's property, and that the applicant would settle his costs and commission. The first respondent insisted that he had disposed of the property and could not reverse the process. This prompted the applicant to file an urgent chamber application before this court for an interim interdict on 30 October 2025. This resulted in the Provisional Order granted before MANDAZA J on 26 November 2025.

The applicant challenged the sale in execution on the basis that it was a nullity and irregular. The irregularities nullifying the sale were pleaded as there having been insufficient notice to the applicant for the sale; that the instruction not to proceed with the sale was ignored by the first respondent as he was advised that the judgement debt had been settled on 23 October 2025 and that there was fraud as the first respondent proceeded to simulate an auction with four of the second respondents' associates who divided the attached goods among themselves.

It was further averred that the entire mining equipment and plant, worth US$200,000.00, was sold for an unreasonably low price of US$13,017.00. A point of law was further raised in the answering affidavit that the attachment itself was a nullity as there was no valuation of the assets made at the time the first respondent attached the property. The invalidity of the attachment was thus challenged on the basis of the peremptory provisions of Order 26 Rule 6(1)(d) of the Magistrates Court (Civil) Rules, 2019.

The confirmation of the Provisional Order was only opposed by the first respondent. A point *in limine* was raised that adequate remedies were provided for in the Magistrates Court (Civil) Rules, 2019, for the applicant to exhaust before approaching the High Court. However, at the hearing, after I directed Mr *Langeveldt* to Order 26 Rule 8, he had sought to rely on which only related to the setting aside of a sale in execution of an immovable property and given that the matter involved movable property, he conceded that the point was unarguable and he duly abandoned it.

As regards the merits, the first respondent contended that there was nothing to stop him from proceeding as the debt had not yet been fully paid. It was also pleaded that the sale was conducted in accordance with the law. That the applicant was given adequate notice, and the sale was advertised as required by the court rules. It was also contended that he only received the written communication from the judgment creditors' lawyers on 27 October 2025, not to proceed with the auction. The letter was only received after the sale in execution had been conducted on 24 October 2025. The letters he had received after the sale had been overtaken by events, and there was no basis to stop it. It was also averred that the first respondent was unaware of the relationship between the parties and the other respondents. He maintained that the sale was in accordance with the law. While the judgment debt and costs had now been paid as at 24 October 2025, the costs and the debt had not been fully satisfied. The prayer was for the Provisional order to be discharged with costs.

In the answering affidavit, the applicant argued that the conduct of the first respondent in opposing the irregular attachment and the sale, which he was instructed to stop, given the supposed beneficiaries who did not oppose the impugned sale, leaves a lot to be desired. The applicant raised two points *in limine* that the first respondent was barred for failing to file its papers within the *dies induciae* and that he was approaching the court with dirty hands. These points were, however, abandoned at the hearing. The applicant also incorporated the answering affidavit filed in respect of the application for the Provisional Order. It was maintained that the Provisional Order ought to be confirmed with costs on a higher scale.

SUBMISSIONS FOR THE PARTIES

Mr *Musarurwa,* for the applicant, submitted that he abided by the heads of argument filed of record. He submitted that these are confirmation proceedings in respect of an interim order issued by consent. He referred me to p 56 of the record, where there is an affidavit from the second respondent's legal practitioner. He argued firstly, the extinguishment of the *causa*. The *causa* was extinguished by the payment of the judgment debt and costs. The payment was made into the second respondent's legal practitioners' (the judgment creditor) account. The affidavit shows she called the first respondent, and the screenshots of the calls are attached. The judgment debt was paid before the sale, and the first respondent was made aware of this. He, however,

proceeded on a frolic of his own. When that instruction to sell is withdrawn, he must stop, and the next thing he must be worried about would be his costs. It is mysterious on what basis he continued.

It was further argued that the second basis for the order sought was that, having proceeded with the sale, he sold the movables at an unreasonably low price. The applicant values the property at least US$200,000.00. There is an inventory showing the property values from the sale, which must be compared with their values as at p 24. There was no regard for the value of the goods. The first respondent must provide an estimate of the property's forced values. The first respondent was indifferent or reckless. The applicant requested the valuation documents, but none exist. None of those valuation documents was filed as such, nor do they exist. It was argued that the lack of valuation made the attachment process disproportionate. The first respondent simply said he would sell all that is of the applicant. It was contended that this was a simulated auction rather than a genuine one. Some of the things, for example, a 30-tonne excavator was sold for US$1,000.

Mr *Musarurwa* also submitted that there was no proper sale. The first respondent was willing to disregard the second respondent's instructions to proceed with the auction. The final order sought is at p 25-26, which is for the sale to be declared null and void, that the judgment debt was extinguished by the payment on 23 October 2025, and that the property be released from attachment. It was also submitted that the applicant seeks costs on a legal practitioner and client scale against the first respondent. The reason was the bad faith shown in the entire transaction. This is so for the reasons of his refusal to abide by the instructions from the instructing legal practitioners, the failure to do the basics to ensure only the sale of those assets necessary to recover the debt and costs and the failure to submit all the necessary documents, which show that he was doing his duties.

Conversely, Mr *Langeveldt* submitted that the first respondent's opposing affidavit set out his basis for opposing the confirmation of the Provisional Order. Pointing to the letter of 27 October 2025, he argued that this matter represents contradicting instructions. He queried why the judgment creditor's lawyers would send a written letter four days later. He argued that if one pays attention to the timing of one of the phone calls, being 10:59 am as per the screenshots

submitted, it indicates that there was sufficient time to issue a similar written communication. When queried whether, given the time of the sale, such written communication would be practicable, counsel accepted that there was an opportunity for confirmation in writing. He admitted, however, that once the judgment creditor has received the payment, there was no need to proceed with the sale. As regards the other points, he abided by the heads of argument filed of record for the first respondent.

ISSUE FOR DETERMINATION

The question for determination was whether the applicant had established valid grounds for setting aside the sale in execution.

APPLICATION OF THE LAW TO THE FACTS

It is trite that generally the courts will not lightly set aside judicial sales. Accordingly, sales in execution are not set aside as a matter of course. Not every complaint should result in the court having to interfere with a sale in execution, as the courts must maintain confidence in the would-be purchasers in such sales. This position was restated in *Mafurirano t/a Skyorks Filing Station v The Sheriff of the High Court & Ors* HB 203/18 at p 4, where MOYO J said:

> "**Sales in execution should, in my view, be set aside only in those situations where there has been a flagrant breach or disregard for peremptory rules and procedures** by the sheriff. In such cases the court, though reluctant to cause a lack of confidence in such sales, it ought to emphasis the need for efficacy in such sales and where appropriate set the sale aside. However, sales in execution cannot and should not be set aside as a matter of course, **it cannot be every judgment debtor's complaint that leads to setting them aside unless if the complaint raised goes to the root of the sale and in fact leads to an injustice**. This court has to balance the judgment debtor's interests with those of the judgment creditor as well as the purchasers of these properties. This court would not want to create a lack of confidence in the would be purchasers by interfering with less than perfect sales and setting them aside on any complaint. **A complaint should be about the process which renders the sale unsustainable in the circumstances**. Refer to the cases of *Kanoyangwa* v *Messenger of court and Others* SC 68/06, *Lalla* v *Bhura* 1973 (2) RLR 280 (A), *Twine Wire Agencies Pvt Ltd* v *CABS* SC 46/05…" (*my emphasis*)

See also *Chikwavira* v *The Sheriff of Zimbabwe & Anor* HH 357/13, where similar sentiments were expressed that the courts do not lightly set aside sales in execution, as this may discourage people from participating in judicial sales. However, as set out in *Mafurirano* (*supra*), where the complaint goes to the root of the sale and leads to an injustice, the court may exercise its discretion to set aside a judicial sale.

In *casu*, the main ground raised, which also goes to the root of the sale, was that the *causa* had been extinguished by the time the sale was conducted. The argument was that the first respondent was instructed to stop the sale in execution following the settlement of the judgment debt and costs on 23 October 2025, but nonetheless, he proceeded despite the extinguishment of the *causa*. It was argued that this rendered the sale a nullity and that it ought to be set aside. It was clear from the evidence that the judgment creditor's lawyer, Steadfast Mazorodze, who deposed to a supporting affidavit at p 56 of the record, contacted the first respondent over the phone on 24 October 2025 before the sale, instructing him to stop the sale as the applicant had settled the debt. There was no dispute that the telephone conversation took place before the sale. In fact, she attached screenshots of the contacts on pp. 58-59 and confirmed that she engaged the first respondent on his contact number, as further stated. The instructions were clear that the applicant had settled what was due, and accordingly, there was no reason to proceed with the sale. She further stated that she informed him that the written communication would follow on 27 October 2025, the following Monday.

These conversations were placed before the court when the application for interim relief was made, and the relief was eventually granted with the first respondent's consent. They were incorporated in the confirmation proceedings. However, the first respondent did not seriously dispute the telephone conversations. In his affidavit, he chose to divert attention to the written communication. Mr *Langeveldt* even admitted that once the judgment debtor had made the payments, there was no need to proceed with the sale. The *causa* for the judicial sale would be extinguished. It is trite that the messenger cannot proceed with a sale as soon as funds sufficient to pay the judgment debt and costs have been raised. This was affirmed in *Diesel Technical (Pvt) Ltd* v *Florenfield Mining (Pvt) Ltd & Ors* HH 340/18 at p 3, where KWENDA J said:

> "First respondent submitted that it received confirmation of receipt of funds in its bank account "..during the sale" but it was "..too late". Once again, the submission is unconvincing. **The Sheriff does not proceed with an execution sale as soon as funds sufficient to pay the judgment debt and costs have been raised by the judgment debtor**. See r 340 of the High Court rules;
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> > "a sale in execution shall be stopped as soon as sufficient money has been raised to satisfy the warrant and costs of sale."" (*my emphasis*)

The evidence was clear that the first respondent was duly notified of the payment of the amount due and instructed to stop any further proceedings. He could not insist solely on written communication when he was informed that the written communication would be sent on the following business day. The telephonic communication came from the instructing legal practitioner, who is the judgment debtor's lawyer. The funds for the judgment debt and costs having been raised and the first respondent duly informed, it was callous and absurd for the first respondent to proceed with the sale as if nothing had happened. There was no longer any legal *causa* for the sale in execution once the funds for the judgment debt and costs had been raised and paid. Proceeding with a sale in such circumstances was unlawful.

In any case, the first respondent executes a court order on the instructions of the judgment creditor. He acts on the instructions of the judgment creditor to attach and sell in execution on behalf of the judgment creditor. In other words, he acts as an agent of the judgment creditor. As an officer of the court, once those instructions to execute have been withdrawn, that should also put an end to his mandate. The first respondent clearly acted on a frolic of his own and could not defy the instructions from the instructing judgment creditor's lawyers to stop any further execution. There was no *causa* for the sale once the payments had been made towards what was due. Accordingly, the sale was unlawful and void *ab initio*. It cannot stand.

The other ground for the challenge was that the property was sold at an unreasonably low price, and, tied to this, the argument was that there was no valuation of the assets at the time of the attachment, rendering the whole process a nullity. It was averred that the entire mining plant and equipment of the applicant was seized and sold for a meagre sum of US$13,017.00. The assets were alleged to have been valued at US$200,000.00. See p 24. The applicant alleged that this was a simulated sale intended to seize the applicant's entire assets. In para 10 of the opposing affidavit, the respondent did not specifically controvert this allegation. He was simply diversionary in his answer by saying that the applicant ought to have approached the Magistrates Court to challenge the sale if it believed that the price was unreasonably low. The first respondent was, of course, mistaken, as the procedure for applying to the Magistrates Court set out in the Magistrates Court (Civil) Rules, 2019, in particular Order 26 rule 8, applies to judicial sales of immovable property.

The failure to specifically controvert the allegations and that the prices were unreasonably low, in my view, is taken to be an admission. It is settled that what is not disputed in affidavits or specifically controverted is taken to have been admitted. See *Fawcett Security Organisation* v *Director of Customs & Excise* 1993 (2) ZLR 121 (SC) and *DD Transport (PVT) Ltd* v *Abbot* 1988 (2) ZLR 92. Further, no evidence is required to establish what has been admitted. It is also trite that what is admitted need not be rebutted. An admission binds its maker with the attendant consequences. See *Manyenga* v *Petrozim (Pvt) Ltd* SC 40/23, where the court stated that:

> "32. The effect of an admission has been held to be the following in the case of *Potato Seed Production (Proprietary) Ltd* v *Princewood Enterprises (Pvt) Ltd & Ors* HH 45-17 at p 4;
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> > "Indeed the effect of an admission is settled law. **Once made it binds its maker with the attendant consequences** see *Kettex Holdings P/L* v *S Kencor Management Services P/L* HH 236-15."
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> 33. **The consequences of making an admission which is not withdrawn is that it will not be necessary to prove the admitted fact(s)**: *Adler v Elliot* 1988 (2) ZLR 283 (S) at 288C. In addition, this Court, in the case of *Mashoko* v *Mashoko & Ors* SC 114-22, held that:
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> > "**The law on admissions in pleadings and indeed in evidence, is also settled**. A party to civil proceedings may not, without the leave of the court, withdraw an admission made, nor may it lead evidence to contradict any admission the party would have made. By equal measure, **a party is not permitted to attempt to disprove admissions made**." (*my emphasis*)

There was no dispute, therefore, that the goods were sold at an unreasonably low price. In any case, what was more fundamental was that no valuation was done at the time of attachment. The first respondent did not produce any document showing that there was a valuation of the assets at the time of attachment. The messenger of court is not required to attach all assets of the judgment debtor, but only such assets as would satisfy the debt and costs. Accordingly, the rules, in peremptory terms, require that the messenger of court conduct a valuation of the assets of the judgment debtor at the time of the attachment. Thus, Order 26 rule 6(1)(d) of the Magistrates Court (Civil) Rules, 2019, states as follows:

> "6.(1) The messenger **shall**, upon receiving a warrant directing him or her to levy execution on movable property –
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> …
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> (d) if the judgment debt and costs are not paid in full, make an inventory and valuation of the property pointed out to him or her or if the debtor does not point out property, **make an**

> **inventory and valuation of so much of the movable property belonging to the debtor as he or she thinks sufficient to satisfy the warrant**." (*my emphasis*)

It is trite that the use of the word "shall" in a statute indicates the intention of the legislature to render the provision mandatory or peremptory. See *Mukwaira* v *Minister of Lands, Agriculture, Fisheries, Water & Rural Resettlement* SC 15/24, at p 15, where it was held that:

> "It is trite that where the word 'shall' is used, it denotes a mandatory requirement. Thus, the use of the word "shall" in s 3 (1) (c) is imperative – it denotes that the section is peremptory, and thus compliance with its provisions is mandatory."

It is also settled law that non-compliance with a peremptory statutory provision renders the process or proceedings a nullity. See *Moyo & Ors* v *Zvoma & Anor* SC 28/10 at p 14.

The first respondent, being an officer of the court, ought to have complied with the mandatory provisions of the rules regarding the valuation required upon attachment. He did not produce any valuation report or document showing the estimated values of the applicant's property at the time he attached the assets, despite the issue having been raised even in the papers relating to the interim relief. To that extent, the allegation that he simply attached the applicant's entire assets, regardless of their values, could not be dismissed. I agree with Mr *Musarurwa* that he was reckless or indifferent as to the values of the assets, which were eventually sold at unreasonably low prices despite the instructions to stop the sale.

I associate myself with the remarks by MUNANGATI-MANONGWA J in *Willow Tile (Pvt) Ltd* v *Matapure & Ors* HH 29-18 at p 5, where she held as follows:

> "Thus the obligation to make an inventory and a valuation lies on both a Deputy Sheriff and a Messenger of Court in executing upon a judgment warrant or writ…
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> **Given the above, the failure by the Messenger of Court to do a valuation which is mandatory renders the attachment a nullity**. UCHENA JA opined in the *Zimbabwe Mining Company (Private) Limited* case cited *supra* at p5 of the cyclostyled judgment, that,
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> > "The Sheriff and all officers acting under his office are not free agents who act as they please….. they are officers of the court who should execute orders of the court. Their mandate is to execute orders of the court in terms of the law and rules." **The same equally applies to the Messenger of Court where the rules are clear that the duty placed on him is mandatory, he has no choice but to act to the letter.** For a Messenger of Court not to be able to evaluate or give a value, especially to an asset as big as a tile plant, or even an indication of a value judgement as to the value of that property, or an estimation, would fall foul of Order 26 Rule 5 (1) (d). **The failure to do the inventory and a valuation, therefore, renders the attachment invalid**." (*my emphasis*)

Consequently, anything founded on a nullity is equally void. A nullity does not beget a valid process. This was enunciated by LORD DENNING in *MacFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC) at 1172I when he said:

> "If an act is void, then it is in law a nullity. It is not only bad, but incurably bad. There is no need for an order of the court to set it aside. It is automatically null and void without more ado, though it is sometimes convenient to have the court declare it to be so. **And every proceeding which is founded on it is also bad and incurably bad**. You cannot put something on nothing and expect it to stay there. It will collapse." (my *emphasis*)

The first respondent could not have proceeded in the dark. The rules not only require that the messenger proceed with an attachment but also require consideration of the rights and interests of the judgment debtor. It does not follow that the debtor's property must be disposed of at any ridiculous price. The inventory and the valuation are meant to protect the judgment debtor from only losing that which makes the judgment creditor recover the judgment debt and costs, and nothing else. Thus, in *Willow Tile* (*supra*) at p 7, the court further held that:

> "**The rules are, in fact, promulgated in order to protect not only the interests of the creditor, but the debtor as well. The reason is not to dissipate or to destroy the debtor but to go to the extent where the debt is paid and if there is excess the same going to benefit the debtor.** I find it irrational that the Messenger of Court disposes an item of such big value without knowing its value, without knowing how much it can fetch on the market all be it within the "forced sale realm". I accept that the plant could have been the only asset that was available for sale, but that did not mean that it had to be disposed at a ridiculous price when none of the parties has disputed the attributed value of Sterling GP250 000.00. This is all because a valuation had not been done, an inventory not properly done, and ultimately no meaningful advertisement flighted." (*my emphasis*)

In these circumstances, where the messenger failed to comply with the peremptory provisions of Order 26 rule 6(1)(d) and also proceeded with a sale in execution when he was instructed to stop, where the *causa* for such judicial sale had been extinguished, the resultant sale was clearly a nullity. The court cannot sanction an illegality. The application must accordingly succeed. I would not relate to all the grounds raised by the applicant, as it is no longer necessary to do so, given my findings above. For the above reasons, the sale ought to be set aside.

The issue of costs is a matter within the discretion of the court. Mr *Musarurwa* dropped the prayer for costs against the other respondents, who did not oppose the application but sought costs on a higher scale against the first respondent. It is trite that costs on a legal practitioner and

client scale are granted only in exceptional circumstances. In *Dongo* v *Naik & Ors* SC 52/20 GWAUNZA DCJ had this to say:

> "It is settled law that costs are at the discretion of the court. The award can only be set aside where the discretion was not exercised judiciously. It is also settled that costs on a higher scale are granted in exceptional circumstances. **The grounds upon which the court would be justified to make an award for costs on a legal practitioner and client scale include dishonest or malicious conduct, and vexatious, reckless or frivolous proceedings by and on the part of the litigant concerned**." (*my emphasis*)

In my view, the conduct of the first respondent in this case was appalling and at most *mala fide*. The first respondent is an officer of the court and a public official who must discharge his duties diligently and transparently. It is surprising that, upon being informed that the *causa* for the execution had been extinguished by the payments made to the judgment creditor, and also being instructed to stop, he decided to proceed with the sale. He could not refuse to accept a phone call, given the exigencies of the matter. There was no question about the authenticity of the instruction or that it was not from the instructing attorney acting for the judgment creditor. It was the most blatant form of abuse of office to act as he did in the circumstances. Worse still, after defying the instructions to stop from those who had instructed him to execute, the second respondent, he even defended the impugned sale alone to this end. Not even the beneficiaries of the purported sale could stand with what happened. The conduct of the first respondent was reckless and a clear abuse of court process. There was nothing to defend, given the clear gross irregularities. The first respondent cannot be allowed to waste the court's time by defending what was clearly indefensible. In the circumstances, punitive costs would be warranted.

It was for the above reasons that the court entered the judgment in favour of the applicant as aforestated with costs on an attorney-client scale against the first respondent.

DEMBURE J: ……

Mambosasa Legal Practitioners, applicant's legal practitioners
Gumbo & Associates, first respondent's legal practitioners